"When Should We Apply?" Questions Families Ask About a Medicaid Application When Care Has Already Started

Plain answers to general questions, and who can answer for your situation.

You're not the first family to be asked "have you started the Medicaid application?" in the middle of everything else. These are the questions that come up most at this step, answered in general terms.

None of the answers is about Mom in particular. Medicaid rules vary by state and change, so where the honest answer is "it depends on the state and the situation," the answer says so and names who to ask.

1 When should we submit the Medicaid application?

It depends on the situation, and this page can't answer it for Mom. The federal long-term care site says the best time to apply depends on a person's medical situation, marital status and the complexity of their finances. Timing is a question for someone who can look at all three for her, in her state. [1]

> **ASK A PROFESSIONAL WHEN** you're wondering whether the application should go in now or once more is in hand. Bring that question to your Medicaid planner before anything is sent.

2 Where does the application go?

To the Medicaid agency in Mom's state. States operate Medicaid day to day, including taking applications and deciding eligibility, and Medicaid.gov keeps a state-by-state directory of contact information. Medicare's introduction to Medicaid says a person can apply in the state where they live, and that some states use a different name for the program. [1] [2] [3]

> **ASK A PROFESSIONAL WHEN** you're not sure which program or which application fits Mom, or she has recently moved from one state to another.

3 What documents do we need?

It depends on the state. In general, applying means filling out a form and providing documents that back it up. USA.gov's list of things an agency may ask for includes a name and date of birth, a Social Security number, proof of citizenship or immigration status, proof of income and information about current insurance; for a homeowner, the federal long-term care site adds papers such as a current tax bill, an appraisal and copies of the mortgage. Start by sorting what you already have. [4] [1]

> **ASK A PROFESSIONAL WHEN** you want to know exactly which records Mom's state asks for, and how far back they need to go.

4 Some of Mom's records are missing. What do we do?

Write the missing ones down by name: the statement for an old account, an insurance policy, the deed. A list is something you can work from and hand to someone else. The Consumer Financial Protection Bureau suggests keeping recent bank and brokerage statements available, along with information about how to get them online, so note which of Mom's accounts can be reached that way and by whom. [5]

> **ASK A PROFESSIONAL WHEN** a record can't be found and you don't know whether the application needs it.

5 Can one of us apply for Mom?

Mom may be able to choose one of you to do it. The federal long-term care site says a person may apply themselves or designate another person, such as a family member, an attorney or a friend, to apply for them, and that this person should be familiar with the situation, be able to answer the eligibility questions and have access to the financial records. It also lists preparing power of attorney documents and addressing guardianship among the things elder law attorneys handle. [1] [6]

> **ASK A PROFESSIONAL WHEN** Mom can't take part or sign herself, or nobody is sure who has the authority to act for her. That is a legal question, for an elder law attorney.

6 Will they ask about Mom's finances in past years?

They may. The federal long-term care site says that if the value of a person's assets went down a lot in the years before applying, the state may ask what happened to them, and that a married applicant in a nursing home may also be asked to document assets as of when they first entered. What any one transaction means for Mom's application isn't something a general guide can say. [1]

> **ASK A PROFESSIONAL WHEN** you come across a large deposit, withdrawal, gift or transfer that nobody can explain. Note the date and the amount as shown, and go through it with your Medicaid planner before the application is submitted. Don't decide what it means, and don't change anything on your own.

7 What happens if Medicaid asks us for additional information?

Then there is a letter or a call to write down, and a reply to prepare with help. The federal long-term care site says only that it may take longer for the state to determine eligibility when required documents aren't provided on time. Note the date on the letter, what it asks for in its own words and any reply date it states, and keep a copy of whatever is sent back. [1]

> **ASK A PROFESSIONAL WHEN** a letter from the Medicaid agency arrives and you're not sure what it's asking for or how to answer. Take it to your Medicaid planner, or call the office that sent it, and write down who you spoke with.

8 How do we keep track once it's been sent?

With one dated log: what was submitted and when, whatever shows it was sent or received, the case or application number if you were given one, each letter and call since, and what was asked for. Keep copies of everything submitted. For checking on an application, Medicaid.gov points people to their state Medicaid agency. [2]

> **ASK A PROFESSIONAL WHEN** the log shows something was asked for and you can't tell whether it was answered.

9 How will we hear the decision, and what if the answer is no?

By letter. The federal long-term care site says an approval letter gives the date of eligibility and the amount the person must pay toward the cost of their care, and a denial letter explains the reason and how to appeal. States must give people the opportunity to request a fair hearing. How that works for Mom is in the letter and in her state's rules, so this page doesn't describe it. [1] [7]

> **ASK A PROFESSIONAL WHEN** a decision letter arrives, whichever way it goes. Bring it to your Medicaid planner; if it raises a legal question, an elder law attorney is the person for it.

10 Do we need a lawyer for this?

It depends on what comes up, and this page can't answer it for Mom. On this roadmap, your Medicaid planner helps with education, organization and coordination, the application is prepared with an applications specialist, and legal advice and legal documents belong to an elder law attorney. The federal long-term care site lists exploring a person's qualifications for Medicaid, and applying on their behalf if appropriate, among the things elder law attorneys do. The Consumer Financial Protection Bureau points to the National Academy of Elder Law Attorneys or a local bar association for finding one, and to local legal services programs for older adults. [6] [8]

> **ASK A PROFESSIONAL WHEN** a question turns on Mom's legal documents, on who may act for her, or on a decision letter you disagree with.

What this guide doesn't do

It doesn't say when Mom should apply, what her state requires or what any letter means, and it doesn't say whether she may qualify for anything. Anything that depends on her state, her finances or her family needs someone who has looked at them. Nothing here is legal, financial or tax advice.

Ready for the next step?

You have plain answers to the general questions, and you know which ones need someone who knows your state. The planning interview is where the questions become about your family: it asks about your family's situation and gives you a free planning report you can bring to any conversation about paying for care.

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5. Consumer Financial Protection Bureau, Planning for diminished capacity and illness
6. Administration for Community Living (LongTermCare.gov), Will I Need a Lawyer?
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